



## CONSTRUCTION AGREEMENT

Contract No. TRWC-2025-041 · Rehabilitation of Pump Station 4

This Agreement is made on **22 April 2025** between the **Tamsin Ridge Water Cooperative** (the "Owner"), 100 Reservoir Road, Tamsin Ridge, and **Halverson & Pike Mechanical, Inc.** (the "Contractor"), 4410 Foundry Street, Brackenfield, under Board Resolution No. 2025-17.

### Article 1. Scope of work

The Contractor shall furnish all labor, materials and equipment to rehabilitate Pump Station 4, Quarry Lane, including:

1. removal of the two existing 125-horsepower pumps and installation of two new 150-horsepower vertical turbine pumps;
2. installation of variable frequency drives and a new motor control center;
3. integration of the station into the Owner's SCADA system;
4. replacement of the station's discharge header and isolation valves; and
5. testing, start-up and training of the Owner's operators (at least eight hours).

### Article 2. Contract price

The Owner shall pay the Contractor **\$1,284,500.00**, subject to additions and deductions by approved change orders. Progress payments are made monthly against approved applications for payment, less a retainage of **five percent (5%)**, which is released at final acceptance.

### Article 3. Time

| Milestone                           | Date                                                          |
|-------------------------------------|---------------------------------------------------------------|
| Notice to proceed and start of work | 1 May 2025                                                    |
| Station out of service (maximum)    | 45 consecutive days, between 15 September and 31 October 2025 |
| Substantial completion              | 30 November 2025                                              |
| Final completion                    | 31 December 2025                                              |

For each day of delay beyond substantial completion, the Contractor shall pay the Owner liquidated damages of **\$1,500.00 per day**.

### Article 4. Warranty

The Contractor warrants all work and equipment for **two (2) years** from final acceptance and shall correct any defect within fourteen (14) days of written notice.

#### **Article 5. Insurance and bonds**

The Contractor shall maintain general liability insurance of at least \$2,000,000 per occurrence and provide performance and payment bonds, each for 100 percent of the contract price.

#### **Article 6. Representatives**

The Owner's representative is Tomás Ibarra, Operations Superintendent. The Contractor's representative is Marcus Halverson, President.

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*Dana Okafor*

For the Owner: Dana Okafor, General Manager

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*Marcus Halverson*

For the Contractor: Marcus Halverson, President